

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Ronn Couillard
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard Room 303
Visalia, CA 93291

Re: Gutierrez, Johnny Gabriel
CDC No.: F68922
Case No.: 160215b
Date of Sentence: March 29, 2007

Dear Honorable Ronn Couillard:

The purpose of this letter is to provide the court with authority to resentence Johnny Gabriel Gutierrez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gutierrez was sentenced in 2007, and was convicted of section 245, subdivision (a)(1), Assault with GBI. The trial court sentenced inmate Gutierrez on March 29, 2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Gutierrez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Gutierrez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

468922

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: TULARE					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Johnny Gabriel Gutierrez		DOB: 02-22-84	160215b	-A	
AKA:			151780	-B	
CII NO: A24776138				-C	
BOOKING NO.		☒ NOT PRESENT		-D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☒ AMENDED ABSTRACT			
DATE OF HEARING 03-29-07	DEPT. NO. 12	JUDGE Ronn Couillard			
CLERK April Arenas	REPORTER Annette Moore	PROBATION NO. OR PROBATION OFFICER PA52346 ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE Todd Zocchi		COUNSEL FOR DEFENDANT Albert Garcia ☐ APPTD.			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to Item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
1A	PC	245(a)(1)	assault with GBI	2006	11-29-06	X			M							6	0
2A	PC	245(a)(1)	assault with GBI	2006	11-29-06	X			M		X					2	0
1B	PC	594(a)	vandalism over \$400	2005	12-06-05			X	M	X						(2)	(0)
					- -												
					- -												
					- -												

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1A	12022.7(a) PC	3					3
1A	186.22(b)(1)(C)	10					10
2A	186.22(b)(1)(a)	1					1
1B	PC186.22(b)(1)(A)	(3 Yrs)					(3) (0)

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
PC667(5)(1)	5					5

4. ☒ Defendant was sentenced per: ☒ PC 667 (b)-(i) or PC 1170.12 (two-strikes).
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. Ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 27 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: **Johnny Gabriel Gutierrez**

160215b

-A

151780

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$1200 per PC 1202.4(b) forthwith per PC 2085.5; \$1200 per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$600 per PC 1202.4(b) forthwith per PC 2085.5; \$600 per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$

☐ Amount to be determined

to ☐ victim(s)*

☐ Restitution Fund

Case B: \$

☐ Amount to be determined

to ☐ victim(s)*

☐ Restitution Fund

Case C: \$

☐ Amount to be determined

to ☐ victim(s)*

☐ Restitution Fund

Case D: \$

☐ Amount to be determined

to ☐ victim(s)*

☐ Restitution Fund

☐ * Victim name(s) if known and amount breakdown in item 11; below. ☐ *Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 12025. \$ per VC 23550 or

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a)

days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$ per PC 12025. \$ per VC 23550 or

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a)

days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$ per PC 12025. \$ per VC 23550 or

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a)

days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$ per PC 12025. \$ per VC 23550 or

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a)

days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$40.00 per PC 1465.8.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify): Deft to register as active participant in criminal street gang pursuant to 186.30 PC.

160215b: restitution to remain open to victim J. O.

151780: Deft to pay court security fee of \$20.00 per 1465.8 PC.

Prior to being released from custody deft to provide buccal swab samples, two right thumbprints, a full palm print impression of each hand, and any Blood specimens or other biological samples required for law enforcement identification analysis pursuant to Section 296(a) PC.

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit

Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED

a. ☒ at initial sentencing hearing.

b. ☐ at resentencing per decision on appeal.

c. ☒ after revocation of probation.

d. ☐ at resentencing per recall of

commitment. (PC 1170(d).)

e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	457	398	59 ☐ 4019 ☒ 2933.1
B	784	522	262 ☐ 4019 ☒ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
03-29-07		DMH	GDG CRC
		[]	[] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the Director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

Michelle Guereca

4-18-18